



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 34713500

Date: JAN. 22, 2025

Appeal of California Service Center Decision

Form I-129, Petition for a Nonimmigrant Worker (H-1B)

The Petitioner seeks to employ the Beneficiary under the H-1B nonimmigrant classification for specialty occupations. *See* Immigration and Nationality Act (the Act) section 101(a)(15)(H)(i)(b), 8 U.S.C. § 1101(a)(15)(H)(i)(b). The H-1B program allows a U.S. employer to temporarily employ a qualified foreign worker in a position that requires both: (a) the theoretical and practical application of a body of highly specialized knowledge; and (b) the attainment of a bachelor's or higher degree in the specific specialty (or its equivalent) as a minimum prerequisite for entry into the position.

The Director of the California Service Center denied the petition, concluding the record did not establish the Petitioner's proffered job qualified as a specialty occupation under section 101(a)(15)(H)(i)(b) of the Act. The matter is now before us on appeal pursuant to 8 C.F.R. § 103.3.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

I. LAW

The Act at Section 214(i)(1), 8 U.S.C. § 1184(i)(1), defines the term "specialty occupation" as an occupation that requires: (A) the theoretical and practical application of a body of highly specialized knowledge, and (B) attainment of a bachelor's or higher degree in the specific specialty (or its equivalent) is a minimum for entry into the occupation in the United States.

The regulation at 8 C.F.R. § 214.2(h)(4)(ii) adds a non-exhaustive list of fields of endeavor to the statutory definition. And the regulation at 8 C.F.R. § 214.2(h)(4)(iii) requires that the proffered position must also meet one of the following criteria to qualify as a specialty occupation:

1. A baccalaureate or higher degree or its equivalent is normally the minimum requirement for entry into the particular position.
2. The degree requirement is common to the industry in parallel positions among similar organizations or, in the alternative, an employer may show that its particular

- position is so complex or unique that it can be performed only by an individual with a degree;
3. The employer normally requires a degree or its equivalent for the position; or
 4. The nature of the specific duties [is] so specialized and complex that knowledge required to perform the duties is usually associated with the attainment of a baccalaureate or higher degree.

The statute and the regulations must be read together to make sure that the proffered position meets the definition of a specialty occupation. *See K Mart Corp. v. Cartier, Inc.*, 486 U.S. 281, 291 (1988) (holding that construction of language which takes into account the design of the statute as a whole is preferred); *see also COIT Independence Joint Venture v. Fed. Sav. And Loan Ins. Corp.*, 489 U.S. 561 (1989); *Matter of W-F-*, 21 I&N Dec. 503 (BIA 1996). Considering the statute and the regulations separately leads to scenarios where a Petitioner satisfies a regulatory factor but not the definition of specialty occupation contained in the statute. *See Defensor v. Meissner*, 201 F.3d 384, 387 5th Cir. 2000). The regulatory criteria read together with the statute gives effect to the statutory intent. *See Temporary Alien Workers Seeking Classification Under the Immigration and Nationality Act*, 56 Fed. Reg. 61111, 61112 Dec. 2, 1991).

So, we construe the term “degree” in 8 C.F.R. § 214.2(h)(4)(iii)(A) to mean not just any baccalaureate or higher degree, but one in a specific specialty that is directly related to the proffered position supporting the statutory definition of specialty occupation. *See Royal Siam Corp. v. Chertoff*, 484 F.3d 139, 147 (1st Cir. 2007) (describing “a degree requirement in a specific specialty” as “one that relates directly to the duties and responsibilities of a particular position”). USCIS’ application of this standard has resulted in the orderly approval of H-1B petitions for engineers, accountants, information technology professionals and other occupations, commensurate with what Congress intended when it created the H-1B category.

And job title or broad occupational category alone does not determine whether a particular job is a specialty occupation under the regulations and statute. The nature of the Petitioner’s business operations along with the specific duties of the proffered job are also considered. We must evaluate the employment of the individual and determine whether the position qualifies as a specialty occupation. *See Defensor*, 201 F.3d 384. So, a Petitioner’s self-imposed requirements are not as critical as whether the position the Petitioner offers requires the application of a theoretical and practical body of knowledge gained after earning the required baccalaureate or higher degree in the specific specialty required to accomplish the duties of the job.

II. ANALYSIS

The Petitioner, a research and medical institution, seeks to employ the Beneficiary in H-1B classification to serve as a registered nurse in the department of adult psychiatry and submitted a labor condition application (LCA) certified for a position located within the registered nurse occupational category as contained in the Department of Labor’s (DOL) *Occupational Outlook Handbook (Handbook)*. *See Bureau of Labor Statistics, U.S. Dep’t of Labor, Occupational Outlook Handbook, Registered Nurses* (Apr. 17, 2024), <https://www.bls.gov/ooh/healthcare/registered-nurses.htm>. According to the Petitioner, the proffered job requires a minimum of a bachelor’s degree or foreign equivalent degree in nursing.

For the reasons below, we have determined that the Petitioner's registered nurse position does not qualify as a specialty occupation. The evidence the Petitioner has submitted into the record does not sufficiently demonstrate that performance of the proffered job's duties requires an individual with a bachelor's degree in a specific related specialty, or the equivalent.

A. First Criterion

The Petitioner's proffered job does not qualify as a specialty occupation under the first criterion of the regulations at 8 C.F.R. § 214.2(h)(4)(iii)(A)(I). To satisfy this criterion, the position must require a bachelor or higher degree in a specific specialty as a threshold for entry. In support, the Petitioner submitted a copy of the *Handbook's* entry for "Registered Nurses."

The Petitioner contends the *Handbook* specifically states the 'typical entry-level education for Registered Nurses' is a bachelor's degree. The *Handbook* lists "three pathways to becoming a registered nurse." Only one requires attaining a bachelor's degree in nursing or a nursing specialty. The other pathways facilitate entry to a nursing occupation with less than an educational level equivalent to a bachelor's degree in nursing, such as an associate's degree in nursing or even a diploma from an approved nursing program. And the *Handbook's* statement that hospitals *may* elect to institute a bachelor's degree in nursing for nursing positions describes a potential preference of some employers versus a normal requirement for a certain type of employer like hospitals. So, the *Handbook's* entry for registered nurses is not sufficiently material, relevant, or probative to convincingly demonstrate a bachelor or higher degree in a specific specialty as a threshold for entry to the Petitioner's proffered position.

The Petitioner has not provided sufficient documentation from a probative and authoritative source to conclude that a baccalaureate or higher degree or its equivalent in a specific specialty related to the duties of the job are normally required as a minimum qualification for entry to this particular position. So, the Petitioner has not satisfied the first criterion contained at 8 C.F.R. § 214.2(h)(4)(iii)(A).

B. First Prong of Second Criteria

The Petitioner's proffered job does not qualify as a specialty occupation under the first alternate prong of the second criterion. The second criterion presents two, alternative prongs: (A) the degree requirement is common to the industry in parallel positions among similar organizations; or (B) the employer's particular position is so complex or unique that it can be performed only by an individual with a degree. The first prong, concerned with common industry practice is satisfied when the Petitioner establishes that their degree requirement is common to the industry in parallel positions among similar organizations.

On appeal, the Petitioner contends the job postings it provided demonstrated a bachelor's degree in nursing or its equivalent is a common requirement in its industry in parallel positions. The Director concluded that the record did not contain adequate material, relevant, and probative evidence showcasing how the positions described in the job postings were parallel to its proffered position or how the organizations posting the position vacancies are similar organizations. On appeal, the Petitioner contends that it provided sufficient evidence that the organizations are comparable.

To be relevant for consideration under this prong, the job vacancy announcements must advertise “parallel positions,” and the announcements must have been placed by organizations that (1) conduct business in the Petitioner’s industry and (2) are also “similar” to the Petitioner. Although the Petitioner provided a brief description for each organization, it did not sufficiently explain how each organization is similar to the Petitioner. Some postings were for organizations that appear to be smaller than the Petitioner such as Catholic Guardian Services with 1200 employees and Gracie Square Hospital with 120 beds, and one organization was much larger such as JP Morgan Chase Health and Wellness Centers with 250,000 employees. In addition, the job vacancy announcements are for positions that appear to differ from the proffered position. For example, some of the job titles were for a unit manager registered nurse, a staff registered nurse, a clinical review nurse, and a registered nurse – senior level III. It appears that several of the positions are for management nurse positions and positions that may be of a higher level than the proffered position. It is not readily apparent from the record through material, relevant, and probative evidence if these advertised positions are parallel to the duties of the position proffered by the Petitioner. The Director’s decision noted these concerns but on appeal the Petitioner reiterates the same prior claims and does not provide additional evidence about the organizations or job duties in the vacancy announcements to overcome the Director’s concerns.

So, we conclude that the advertisements provided do not support the Petitioner’s argument concerning eligibility under the first alternative prong of the second criteria 8 C.F.R. § 214.2(h)(4)(iii)(A)(2).

C. Second Prong of Second Criterion and Fourth Criterion

The Petitioner’s proffered job does not qualify as a specialty occupation under the second alternate prong of the second criterion or the fourth criterion of the regulations at 8 C.F.R. §§ 214.2(h)(4)(iii)(A)(2) and (A)(4). The alternative prong of the second criterion is satisfied if the Petitioner shows that its particular position is so complex or unique that it can be performed only by an individual with a bachelor’s degree in a specific specialty related to the duties of the proffered position or its equivalent. The fourth criterion at 8 C.F.R. § 214.2(h)(4)(iii)(A)(4) requires a petitioner to establish that the nature of the specific job duties is so specialized and complex that the knowledge required to perform them is usually associated with the attainment of a baccalaureate or higher degree in a specific specialty, or its equivalent.

The Petitioner stated that its registered nurses must possess a bachelor’s degree in nursing or a foreign equivalent as a minimum qualification for entry because the Petitioner is a “prominent academic medial center hospital engaging in the highest levels of medical research and delivering the highest levels of cutting edge medical care.” The Petitioner further stated that the American Nurses Credentialing Center (ANCC) recognized the Petitioner as a magnet institution that is committed to hiring registered nurses with a bachelor’s degree in nursing. Whilst magnet recognition may demonstrate that there is a concerted effort to increase the population of nurses with bachelor’s degrees in nursing, the magnet recognition does not demonstrate whether the nursing positions at the magnet recognized institutions are more “complex or unique” or their duties “specialized and complex” simply by virtue of the ANCC magnet recognition.

The record lacks sufficient unambiguous evidence that is material, relevant, and probative describing how the Petitioner’s registered nurse position is more “complex or unique” or its duties “specialized and complex” from positions that do not require at least a bachelor’s degree in a specific specialty or

its equivalent to perform the duties of the Petitioner's offered job. So, the Petitioner has not satisfied the second alternative prong of the second criterion at 8 C.F.R. § 214.2(h)(4)(iii)(A)(2) or the fourth criterion at 8 C.F.R. § 214.2(h)(4)(iii)(A)(4).

D. Third Criterion

The Petitioner's proffered job does not qualify as a specialty occupation under the third specialty-occupation criterion at 8 C.F.R. § 214.2(h)(4)(iii)(A)(3). The third criterion requires an employer to demonstrate that it normally requires a bachelor's degree in a specific specialty, or its equivalent, related to the performance of the position's job duties.

The record must establish that a petitioner's stated degree requirement is not a matter of preference for high-caliber candidates but is necessitated instead by performance requirements of the position. *See Defensor*, 201 F.3d at 387-88. Were we limited solely to reviewing a petitioner's claimed self-imposed requirements, an organization could bring any individual with a bachelor's degree to the United States to perform any occupation so long as the petitioning entity created a token degree requirement. *Id.*

The Petitioner provided a letter from its Director of Nursing Recruitment that stated as a top-tier national research and medical institution that provides the highest standard of care, it "normally" hires nurses with a bachelor's degree as a basic educational qualification for the registered nurse position. The author also noted that the Petitioner maintains a magnet designation that requires it to reach at least 80 percent of bachelor level nurses. The author did not state that the Petitioner normally requires a bachelor's degree in a specific specialty. We construe the term "degree" in 8 C.F.R. § 214.2(h)(4)(iii)(A) to mean not just any baccalaureate or higher degree or its equivalent, but one in a specific specialty that is directly related to the proffered position supporting the statutory definition of specialty occupation or its equivalent. *See Royal Siam Corp.*, 484 F.3d at 147 (1st Cir. 2007) (describing "a degree requirement in a specific specialty" as "one that relates directly to the duties and responsibilities of a particular position"). However, even if the Petitioner demonstrates that the educational requirement for the registered nurses is a bachelor's degree in a specific specialty such as nursing, the submitted documentation explaining the eligibility for ANCC magnet designation does not clearly show the Petitioner normally hires registered nurses with a bachelor's degree. The ANCC manual indicated that part of the eligibility for ANCC magnet designation, the organization must "provide graphed data (displayed as a percentage) of baseline data, plus two years of data, demonstrating the organization progressing toward (or maintaining) >80% of professional registered nurses who have earned a baccalaureate or higher degree in nursing." Since the ANCC guidelines allow for evidence of the institution "progressing toward" at least 80 percent of registered nurses who have a bachelor's degree in nursing, it is not clear if the Petitioner normally hires nurses with a bachelor's degree in nursing or if it hires nurses without a bachelor's degree and allow them to earn a bachelor's degree in nursing after being hired.

The Petitioner also provided evidence showing that 91 percent of the registered nurses currently working in the adult psychiatry unit, the unit where the proffered position will be located, possessed a bachelor's degree in nursing or its equivalent when hired. The Petitioner provided the educational documentation of the ten registered nurses currently working in this unit. The Petitioner also explained that two of the registered nurses in the adult psychiatry unit were hired with less than a bachelor's

degree in nursing because one nurse was hired over twenty year ago “before the educational requirements evolved” and another nurse had an associate’s degree with 43 years of experience. We observe that the Petitioner indicated it employs approximately 4000 registered nurses, consequently, it cannot be determined how representative the Petitioner’s claim regarding the ten individuals currently employed as registered nurses in the adult psychiatry unit over decades of time is of the Petitioner’s normal recruiting and hiring practices. The Petitioner has not satisfied the criterion at 8 C.F.R. § 214.2(h)(4)(iii)(A)(3).

The Petitioner has not persuasively established that it normally requires at least a bachelor’s degree in a specific specialty required to perform the duties, or its equivalent, for the position. So, the Petitioner has not satisfied the third criterion of 8 C.F.R. § 214.2(h)(4)(iii)(A).

And the Petitioner has not satisfied any of the available criteria described at 8 C.F.R. § 214.2(h)(4)(iii)(A)(1)-(4). Thus, it has not established that the proffered position is a specialty occupation.

III. CONCLUSION

The appeal will be dismissed for the above stated reasons. In visa petition proceedings, it is the Petitioner’s burden to establish eligibility for the immigration benefit sought. Section 291 of the Act, 8 U.S.C. § 1361. The Petitioner has not met that burden.

ORDER: The appeal is dismissed.